



Duke Power
Energy Center
P.O. Box 1006
Charlotte, NC 28201-1006



November 30, 1998

[Redacted]
Denver, NC 28037

RE: Shoreline Management Program Permit Approval
Lake Norman – Pier, 4286 Lake Shore Road North

Dear [Redacted]

This office has reviewed your application and at this time we can authorize the building of the structure(s) you requested within the project boundary of a Duke Power lake, providing that you follow the application submitted within our current guidelines. The structure may not exceed 1/3 of the cove or 120 feet in length, whichever is less, or the maximum size of 1000 sq. ft. We should be notified upon completion of the structure(s) so that the Shoreline Management Program can be completed; reflectors and a permit tag will be attached at final inspection. Please post the enclosed notice at the shoreline so that it will be visible from the lake.

Thank you for your cooperation with this program. If you build any additions, make any modifications, or have any further questions, please contact me at 704-382-8573, or toll free 1-800-443-5193.

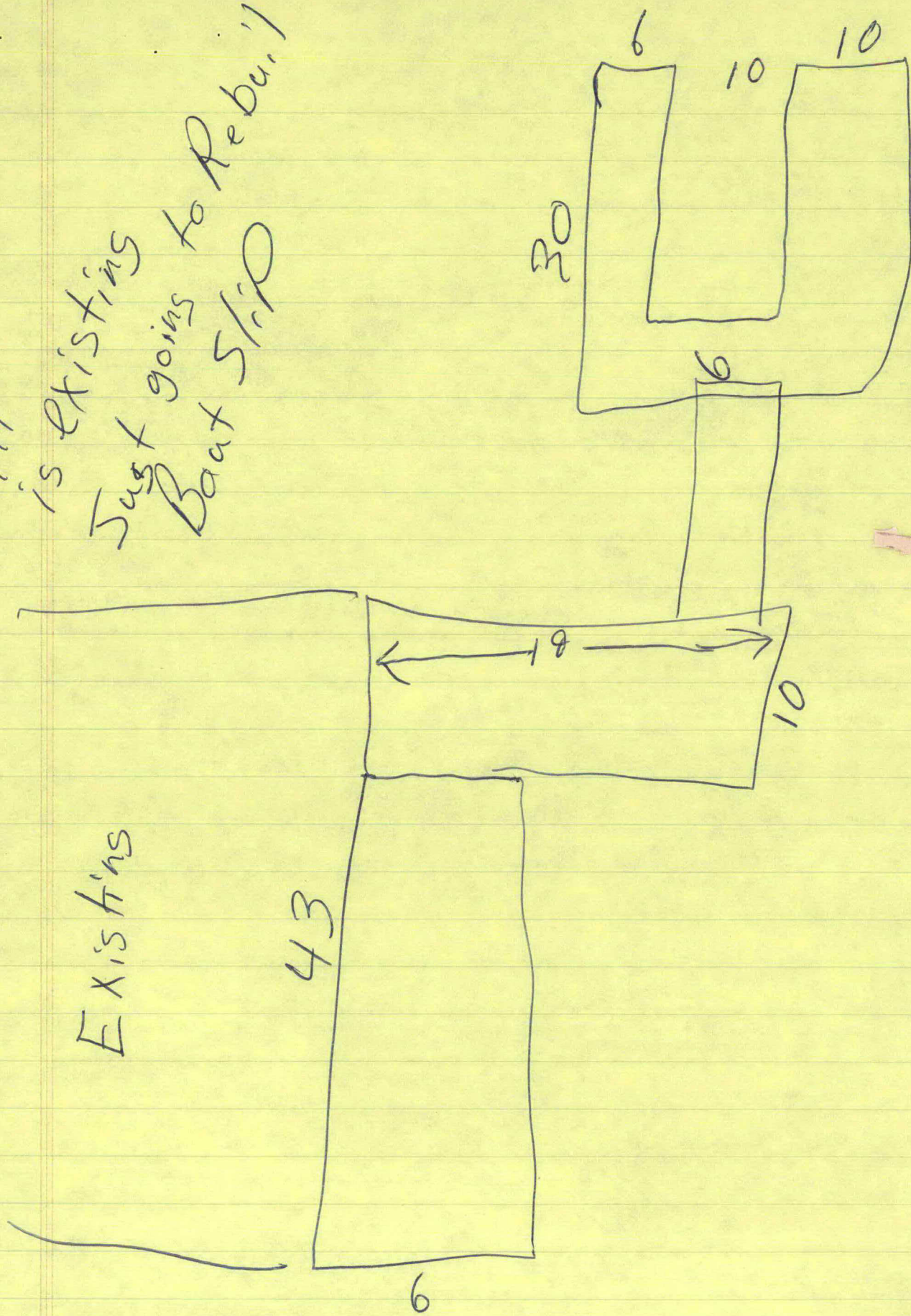
Sincerely,

Ann L. Duncan
Lake Management Representative
Group Environment, Health, and Safety

ALD/ssp

Enclosure(s)

All is existing to Rebuild
Just going to Rebuild
Boat Slip





Lake Services

Duke Energy
526 S. Church Street / EC12Q
Charlotte, NC 28202

January 16, 2018

David Underwood
4286 Lakeshore Road
Denver, NC 28057

RE: **Private Facilities Permit Transfer**
Norman - 4286 Lakeshore Road

Dear Sir/Madame:

This office has reviewed your request to transfer the existing Private Facilities permit associated with your property located within the Project Boundary of a Duke Energy lake. Our records will be updated to reflect the change in ownership and responsibility for the permitted facility. Please keep a copy of this notice for your records.

Also, please note: 1) Any new, expanded, or rebuilt facilities require written authorization from Duke prior to construction, 2) Any shoreline stabilization or excavation within the lake requires written permission from Duke, and 3) Any watercraft moored at this location must not interfere with access to other facilities and may not obstruct ingress and egress of other watercraft.

Thank you for your cooperation with this program. If you propose to build any additions, make any modifications, including maintenance, or have any further questions, please contact me at 704-382-3775 or you may call 1-800-443-5193 and select the appropriate option.

Sincerely,

A handwritten signature in dark ink, appearing to read 'Dale R. Mosteller'.

Dale R. Mosteller
Lake Services Representative
Duke Energy Lake Services

Enclosure(s)

DRM/dpg

oic 1/9/18 *dm*

DUKE ENERGY INTERNAL USE ONLY

Date Received 1/11/17 App Fee Amt
Check # Check Date
Site ID 09474 HEP Fee
☐ Application Complete

Construction
Application
version 17a



Duke Energy Lake Services
Mail Code EC12Q
526 S Church St.
Charlotte, NC 28202

I. DATE OF APPLICATION*

12-29-17

Tag #:

5362

II. APPLICANT INFORMATION (applicant mailing address and contact information)

Name* David Underwood Primary Phone* 704-675-2921
Address* 4286 Lakeshore Rd N Secondary Phone
City Denver State NC Zip Code 28057
Email

III. PROPERTY INFORMATION (location of permit)

Address* 4286 Lakeshore Rd N County* Lincoln
City* Denver State* NC Zip Code* 28057 Lake* Norman
Subdivision Westport Lot(s)

To enter the Latitude and Longitude of the property, please use a service/software to easily acquire the location information. Values should be provided in Decimal Degrees format (35.1245).

Latitude (e.g. 35.12345)*

35.525464

Example service: <http://itouchmap.com/latlong.html>

Longitude (e.g. -80.12345)*

-86.974410

IV. PROPOSED ACTIVITY (check all that apply)

- | | | |
|---|--|---|
| ☐ New/Modification of Existing Structure | ☐ Maintenance of Existing Structure | Dock is covered ☐
of slips ☐
of Jetports ☐ |
| ☐ New/Modification of Existing Shoreline Stabilization | ☐ Maintenance of Existing Shoreline Stabilization | |
| ☒ Transfer of Ownership | ☐ Other (please describe below) | |

Area over land (sq ft) Area over water (sq ft) Total Square Feet

Shoreline Stabilization (feet) Length of Stabilization Distance from Shoreline

Materials

Brief Description of the Activity

Describe Briefly the Existing Structures Over Land and Water (include sq ft)

V. Checklist of Required Documents (To be made with Application Submission)

F0
GF

Survey (stamped/ signed by a professional licensed surveyor showing the location of the existing or proposed structure and/or survey of the existing or proposed stabilization)

F0
GF

Photos along property shoreline and photos of any existing structures and/or stabilization in or near the water

F0
GF

Application fee (check only, payable to Duke Energy)

F0
GF

Applicable local, state, and federal permits

F0
GF

Signed Applicant's User Agreement Letter

F0
GF

Plan and profile drawing showing all measurements and elevations

F0
GF

Habitat Enhancement Program payment (if applicable)

Please limit documents sizes to 11" X 17" or smaller.

VI. Approval Process

- Application is reviewed and determined if complete. Fields with an asterisk are required.
- If application is not complete or does not include all items and information listed in the checklist, the application will be returned as incomplete.
- A Duke Energy representative will visit the site to conduct a visual inspection.
- Applicant will be notified of approval or denial.
- Applicant is to have the notice, to be supplied by Duke Energy upon application approval, posted and must be viewable from water. The notice must remain posted until a representative inspects the project and determines the project is complete and within the application specifications.

VII. Directions by Road

Directions by Road*

Hwy 16 Bus. to Fairfield Forest.

Turn Left onto Lakeshore V.

First house on Right. 4286 Lake Shore Rd V

IX. Application Submission

Please complete, print and sign this application. Then enclose all items from the checklist above in an envelope and submit all the information to the address below.

Duke Energy Lake Services
Mail Code EC12Q
526 S Church St.
Charlotte, NC 28202

I agree the information contained within is accurate:


Signed By (must be the property owner)

**DUKE ENERGY PRIVATE FACILITIES
"APPLICANT'S USER AGREEMENT"**
(Fill in blanks with required information. Please Print)

Date 12-29-12

TO: Duke Energy
c/o Lake Services - EC12Q
526 S. Church Street
Charlotte, NC 28202

RE: (Lake Name) Norman

(Lake Address) 4256 Lake Shore Rd NE
Denver, NC 28033

(Applicant's full name) David Anderson hereby
agrees to comply with all requirements and conditions set forth by Duke Energy's Lake Services
(Duke Energy) office, and any federal, state or local agencies pertaining to our application to
construct and/or maintain a

lock and shoreline on Lake Norman. In addition,
I/we have read and agree to comply with Duke Energy's **Shoreline Management Guidelines**
(SMG) and understand that written authorization must be obtained from Duke Energy prior to
beginning any activity/construction within the Federal Energy Regulatory Commission (FERC)
Project boundary. The construction will be completed as described in the approved application
and within twelve (12) months following the date of approval by Duke Energy. An extension
will be considered for legitimate extenuating circumstances (as determined by the sole discretion
of Duke Energy) provided a specific timeframe in which to complete the construction, not to
exceed an additional 12 months, is provided in writing to Duke Energy by the applicant. Failure
to complete construction within the 12-month build-out period or any Duke Energy approved
extension will require the applicant to file a new application that complies with the then-current
SMG. The new application filing will include any applicable fees and security deposits.

I/we attest to be the owner or lease holder of the tract of land immediately adjoining the Project
boundary where the proposed private facility is to be constructed.

I/we agree to comply with all FERC orders (as modified or interpreted by FERC), with all other
applicable FERC Rules and Regulations implemented by Duke Energy, and with all rules or
regulations imposed on Duke Energy by any governmental agency.

I/we understand the physical location of my/our lot in relation to the common property line with Duke Energy, if any, the FERC Project boundary, and any deeded flood easements or required building setbacks.

I/we understand that this lake was constructed as a working hydropower reservoir for the primary purpose of producing cost-effective electric energy and that this remains as the lake's primary purpose. I/we understand the lake and its associated hydroelectric facilities are operated by Duke Energy under the terms of a license issued by the FERC and there will be no change in hydro project operations as a result of the construction and/or use of any facilities that I/we may be allowed to place within the FERC Project boundary or on any Duke Energy-owned property.

I/we understand during drought conditions Duke Energy may request reduced usage or discontinued usage of any water withdrawal or related systems, until such drought conditions improve. Failure to do so may cause possible removal of the system and/or any other permitted facilities that I/we may have, and any costs associated with removal of the facilities will be assessed to the lot owner.

I/we understand lake levels will rise and fall over time in response to weather events and hydro project operations and Duke Energy does not guarantee an approved facility will always have sufficient water depth to be accessible by boat or for other water depth related recreation activities.

I/we acknowledge Duke Energy provides no guarantee of any specific quantities (except those identified in the FERC license) or quality of water in the lake.

I/we understand the facilities to be installed and/or maintained are my/our property and I/we therefore agree to be fully responsible for the permitted reservoir use including maintaining facilities in good repair. If the private facility is deemed unsafe by Duke Energy, I/we agree to repair or remove the private facility at my/our own expense and within the specified timeframe set by Duke Energy.

I/we understand Duke Energy approval of the requested reservoir use in no way constitutes assignment of any interest in real property Duke Energy may have (i.e. land rights). The approval is granted and maintained solely at Duke Energy's discretion. I/we also understand the permitted use may be revoked at any time by Duke Energy or its successors for any reason whatsoever. If the approval is revoked, I/we agree to remove the facility at my/our own expense within the specified timeframe set by Duke Energy.

I/we understand ownership/interest in a Common Use Facility or residential marina eliminates the option of having a separate private facility on any other owned or leased lot within the affected subdivision.

I/we understand this lake is open for use by the general public and that maintaining safe and lawful public use is one of the primary lake management objectives of Duke Energy.

I/we understand the use for which we are applying is a private use and it should not interfere with the general public's safe and lawful use of the lake.

I/we understand lake use permit holders have the authority to prevent others from trespassing on the facilities *I/we* have built. *I/we* also understand *I/we*, however, do not have any authority to impede anyone from pursuit of the lawful public recreation enjoyment of FERC Project lands and waters. Except as specified otherwise in the SMG, other Duke Energy documents (e.g. Public Safety Plans), or a separate lease agreement, anyone may fish around/under facilities built by others, may walk/wade/fish within the FERC Project boundary, boat in the lake's waters, etc. without having to get anyone's permission to do so.

I/we agree to fully disclose all information regarding the approved private facility to any prospective buyer/leaseholder of the property and any new owner/leaseholder. *I/we* agree to notify Duke Energy immediately of any sale/transfer of the property, including the name and address of the new owner and to transfer the permit and/or Duke Energy lease to the new owner.

I/we agree the adjacent Duke Energy Project property, if any, shall be used exclusively for non-commercial recreational purposes and that *I/we* shall not rent or otherwise allow third parties (except for temporary use by guests, family members, and leaseholders of the residential property) to use any facilities permitted to *me/us* by Duke Energy.

I/we agree not to allow any use of the adjacent property, and will exercise due care and diligence to prevent all other persons that are affiliated with *my/our* property (including invitees, family members, guests, etc.), to violate an applicable federal, state or local law or regulation. Examples include, but are not limited to nudity, illegal discharge of firearms or fireworks, controlled substance abuse, public drunkenness, public urination or defecation, or other activities determined to be a nuisance by law enforcement officials.

I/we agree to exercise all care and due diligence to preserve and maintain the character of the Duke Energy's adjacent property, if any. *I/we* agree to comply with the Duke Energy vegetation management requirements as stated in the SMG. *I/we* agree further to not allow sewage, including discharge from septic tanks (or similar facilities) or boat holding tanks, garbage, trash, or other waste material to be discharged or dumped into the reservoir, tributaries or adjacent property.

I/we understand that as an adjoining property owner *I/we* can make no change in land form of land within the FERC Project boundary or land owned by Duke Energy, if any, such as grading, excavation or filling without prior written approval by Duke Energy.

I/we agree for myself/ourselves, members of my/our family, guests and invitees that *I/we* assume all risks of personal injury or property damage incident to *my/our* occupancy and use of the FERC Project boundary or land owned by Duke Energy, if any; including, but not limited to, any personal injury or property damage which may be sustained as a result of flood waters or in connection with the rise and fall of water in the reservoir as a result of floods or of the operation of Duke Energy's hydroelectric facilities. *I/we* as the adjoining property owner(s) further agree *I/we* will indemnify, protect, defend, and save harmless Duke Energy from any and all loss, cost,

claims damages, expenses, judgments and causes of action for all injuries and damages sustained by the members of *my/our* family, guests, and invitees arising or claimed to have arisen in connection with their occupancy or use of the Duke Energy permitted facility(s).

I/we agree if any action is taken by Duke Energy to enforce any provision, covenant or agreement contained in this user agreement or Duke Energy SMG or if Duke Energy is required to retain an attorney to enforce any provision, covenant or agreement contained in this user agreement or SMG (including, without limitation, the payment of fees due hereunder or the removal of an encroachment constructed in violation of this user agreement or SMG), then Duke Energy shall be entitled to recover all of its reasonable costs associated with such an action, including but not limited to, attorneys' fees and court costs incurred in such action and/or enforcement.

I/we understand certain activities specified in the SMG are prohibited because of environmental concerns, boating capacity limitations, safety considerations and other reasons.

I/we specifically waive any claim against Duke Energy for consequential damages arising out of or relating to this application, Duke Energy's approval or denial of it, or subsequent revocation of approval, and *I/we* specifically understand and acknowledge that, because Duke Energy can revoke the permitted use at any time, *I/we* am/are not entitled to reliance damages.

I/we understand the proposed facility will be used only for the purposes described in the information submitted to Duke Energy and other appropriate governing bodies for approval.

I/we understand every reasonable effort must be made to minimize adverse impacts on fish, wildlife, and other natural resources.

I/we understand trees and vegetation growing within the Project boundary play an important role in the overall environmental condition of the lake. The ecological benefit the vegetation has on the fish and wildlife habitat supports a sound and healthy lake environment. *I/we* also understand unauthorized removal of shoreline vegetation and/or disturbance of the shoreline buffer may result in suspension or denial of lake use permitting requests and require *me/us* to re-establish the vegetation, if the disturbance is found to be in violation of the state or county watershed buffer regulations or Duke Energy's vegetation management requirements as stated in the SMG.

I/we agree to maintain any prescribed mitigation activities that are required in order to gain approval for facility construction, as long as the facility exists.

I/we recognize *I/we* have the continuing responsibility to ensure that the constructed facilities are maintained in good repair, including, but not limited to maintenance of the facilities, and proper erosion control within the permit area and along the shoreline, and agree to take all reasonable steps necessary to meet this responsibility. *I/we* agree to maintain all facilities within the Project boundary and on Duke Energy-owned property, if any, in a sound condition and in a neat appearance and pay all costs for said maintenance.

I/we understand Duke Energy representatives may issue Stop Work Directives for any violation(s) of the SMG or engagement in prohibited acts or activities on Duke Energy property, if any, as specifically identified in the SMG. I/we understand persons found to be in violation will be subject to Duke Energy sanctions which can include, but are not necessarily limited to: 1) restoration of the impacted area at the person's expense; 2) loss of consideration of any future lake use permitting activities for up to five years for improper vegetation removal or until vegetation is satisfactorily re-established (even if there is a change in property ownership); 3) revocation of a previously issued permit and loss of consideration of any future lake use permitting activities and/or reinstatement of the revoked permit; 4) increase in fees; 5) modification or removal of non-complying facilities; and/or 6) further legal action being taken by Duke Energy.

I/we agree that if any historic or archaeological resources are discovered during construction of an approved activity the applicant must stop work immediately and contact Duke Energy. I/we understand that in the event that anyone discovers a potential site of archaeological or historic significance including any gravesite within the Project, the individual must immediately notify Duke Energy.

I/we acknowledge Duke Energy has the right to charge reasonable user's fees for private use of its property, if any, and the Project and failure to pay any applicable user's fees in a timely manner can result in the suspension or cancellation of any previously approved lake use permit.

I/we agree to notify Duke Energy when construction is completed and during the construction period, I/we will post the Duke Energy approval (to be provided by Duke Energy) at the job site visible from the water's edge.

David Underwood
Applicant Name

7786 Lake Shore Rd #1
Lake Street Address

Denver NC 28037
City/State/Zip Code

704 675 2921
Preferred contact Phone Number

dunderw@live.com
Email Address

[Signature]
Applicant Signature

7786 Lake Shore Rd #1
Home Mailing Address

Denver NC 28037
City/State/Zip Code

704 675 2921
Home Phone Number

12-29-17
Date

All
is existing
Just going to Rebuild
Boat Slip

